

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/07/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01545461 Patierno Family LLC vs. Parker	The Court has read and considered the Defendant's Motion to Set Aside Default/Default Judgment (ROA 82) and Exhibit List (ROA 79). The Court takes Judicial Notice of the 5/8/26 Minute Order (ROA 32), 5/12/2026 Minute Order (ROA 34), 5/28/26 Minute Order (ROA 45), 6/4/26 Minute Order (ROA 54), 6/18/26 Minute Order (ROA 64), 6/29/26 Minute Order (ROA 70), 7/1/26 Minute Order (ROA 76), and the Request for Clerk's Default (ROA 13). As reflected in Ms. Parker's Exhibit List (page 59 of 150), the Court recognizes that Ms. Parker has documented serious mental illness. The Court has also considered her assertions, made in multiple ex parte applications, regarding an infestation of worms and contagious parasites. However, when Huntington Beach Code Enforcement inspected the property in or about May 2026, it did not observe the serious conditions described in those filings. The record reflects that Ms. Parker was personally served with the Summons and Complaint on February 9, 2026, at 7:18 p.m. by registered process server

		Justin Martin (Orange County Registration No. 2655). Ms. Parker did not file a responsive pleading within the time prescribed by law. Following issuance of the Writ of Possession, Ms. Parker filed an ex parte application seeking to stay enforcement of the writ and to set aside the default. The Court granted a temporary stay and set the matter for hearing on May 12, 2026. Ms. Parker did not appear at that hearing, and the stay was lifted. Thereafter, Ms. Parker filed multiple additional ex parte applications, each of which was denied. The Court has also considered Ms. Parker's contention that she was prevented from accessing the Court or filing documents. The record, however, demonstrates that she successfully filed numerous ex parte applications, including filings made through the Court's electronic filing system. In addition, for the May 12, 2026 hearing, the Court expressly permitted Ms. Parker to appear by video or telephone in order to accommodate the limitations she had identified. These circumstances do not support the assertion that she was denied meaningful access to the Court. Having considered the evidence and the parties' submissions, the Court finds that Ms. Parker has not met her burden of establishing relief under California Code of Civil Procedure section 473(b). Accordingly, the Motion to Set Aside Default and Vacate the Writ of Possession is DENIED. The Court Clerk is to provide notice of the Court's ruling.
2	30-2026-01583760 Raintree Tustin, LLC vs. Johnson	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 7). Ms. Cardoso (Plaintiff's Counsel) was served with mail notice on 8/3/26 of the Motion per the proof of service attached to ROA 7. A review of the Court docket shows that no Proof of Service of Summons has been filed with this Court. The Defendant's Motion to Quash is GRANTED. Plaintiff is ordered to serve the Defendant and file proof of service with this Court. The Court Clerk is to provide notice of the Court's ruling.
3	30-2026-01570249 Iorio vs. Iorio	The Court has read and considered the Defendant's Motion to Set Aside (ROA 16). The attached proof of service states that on 7/15/2026 Plaintiff's counsel was served by mail notice of this motion. The Court finds under California Code of Civil Procedure 473(b) that the Defendant has met its burden in establishing mistake and excusable neglect of the proceedings in failing to timely file an Answer. The Court GRANTS the Defendant's Motion to Set Aside the Default that was entered on 7/13/2026.

		The Court Clerk is ordered to file the UD-105 Answer attached to Defendant's Motion to Set Aside. The Court sets August 19, 2026 at 8:30 AM in C61 for a Court Trial. The Court Clerk is to provide notice of the Court's ruling.
4	30-2026-01567697 Kelly vs. Solomonian	The Court has read and considered the Defendants' Motion to Set Aside the Judgment and Any Default and to Quash Any Writ of Possession/Execution (ROA 94) and Plaintiff's Opposition (ROA 120). The Court takes Judicial Notice of the 7/31/2026 Minute Order (ROA 116), the 7/22/2026 Minute Order (ROA 91), Judgment-Unlawful Detainer (ROA 64), Request for Entry of Default (ROA 65), Writ of Possession (ROA 66), Motion for Reconsideration of Denial of Defendants' Motion to Strike Plaintiff's Unlawful Detainer Complaint (ROA 52), and Order on Appeal – Appeals (ROA 123). On June 23, 2026, the Court denied Defendants' Motion to Strike the Complaint and ordered Defendants to file an Answer within five (5) business days. Defendant Patrick Solomonian, a licensed attorney, represents both himself and Defendant Maxx Solomonian. Attorney Solomonian was present in court when the ruling was announced and therefore had actual notice of the Court's order. On June 29, 2026, four (4) business days after the Court's June 23, 2026 order, Attorney Solomonian filed a Motion for Reconsideration, which was calendared for hearing on July 10, 2026, at 8:30 a.m. Although Defendant's declaration states that the motion was filed on June 30, 2026, the Court's electronic filing record reflects that the Motion for Reconsideration (ROA 52) was filed on June 29, 2026. Attorney Solomonian did not seek ex parte relief to shorten time, did not file a petition for writ or a notice of appeal, and did not request a stay of the Court's June 23, 2026 order pending determination of the Motion for Reconsideration. On July 10, 2026, at approximately 9:26 a.m., the Court denied Defendants' Motion for Reconsideration (ROA 60). Later that same day, at 3:54 p.m., Plaintiff electronically filed a Request for Entry of Default (ROA 65). Pursuant to that request, the Clerk entered the defaults of Defendants Patrick Solomonian and Maxx Solomonian on July 10, 2026. The Clerk thereafter entered judgment in unlawful detainer (UD-110) and issued the Writ of Possession on July 13, 2026. Despite having actual knowledge of the Court's June 23, 2026 order requiring an Answer within five (5) business days, knowing that no stay of that order had been issued, and being aware that the Motion for Reconsideration had been denied on July 10, 2026, Attorney Solomonian did not file an Answer at any time before the defaults were entered.

		Attorney Solomonian contends that the Court denied the Motion to Strike because it was untimely. The record does not support that assertion. At no point during the June 23, 2026 hearing did the Court state, either orally or in its written order, that the Motion to Strike was untimely. To the contrary, the Court heard and considered the motion on its merits, entertained argument from both parties, and thereafter denied the motion. As reflected in the Court's June 23, 2026 order, the Court concluded that the filing of the Motion to Strike constituted a general appearance under Code of Civil Procedure section 1014. The Court further concluded that Code of Civil Procedure section 435(d) did not extend Defendants' time to respond to the Complaint by demurrer. Accordingly, the Court ordered Defendants to file an Answer within five (5) business days. Defendant's characterization of the Court's ruling is inconsistent with both the oral proceedings and the written order. The Court further finds that Defendants have failed to satisfy their burden of establishing entitlement to relief under Code of Civil Procedure section 473(b) by a preponderance of the evidence. Section 473(b) expressly provides: "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc., § 473(b).) Defendants failed to attach or lodge a proposed Answer with their motion to set aside the defaults. This omission alone precludes relief under the statute. Even if the procedural defect were disregarded, Defendants have failed to demonstrate mistake, inadvertence, surprise, or excusable neglect. The evidence establishes that Attorney Solomonian had actual notice of the Court's June 23, 2026 order and knowingly elected not to comply with it. Instead, he chose to file a Motion for Reconsideration without seeking any stay of the Court's order. A motion for reconsideration does not automatically stay enforcement of the underlying order or suspend a party's obligation to comply with it. Following the denial of the Motion for Reconsideration on the morning of July 10, 2026, Attorney Solomonian still took no action to file an Answer, seek emergency relief, or otherwise obtain a stay before Plaintiff requested entry of default later that afternoon. The Court finds that this course of conduct was the product of a deliberate litigation decision rather than excusable neglect. Accordingly, Defendants have failed to establish grounds for mandatory or discretionary relief under Code of Civil Procedure section 473(b). Therefore, the Court DENIES the Defendants' Motion to Set Aside Default Judgment. The Court Clerk is ordered to notify the Orange County Sheriff's Department to proceed with the writ of possession and lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.
5	30-2026-01548429 Lu vs. Hatoka	The Court has read and considered the Defendants' Motion to Reopen and Reconsider Judgment (ROA 66)

		The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 53), 5/13/2026 Minute Order (ROA 56), 4/30/2026 Minute Order, 5/6/2026 Minute Order (ROA 48 & 51), and 7/9/2026 Minute Order (ROA 64). California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) When a party has not been prevented from knowing or exercising the opportunity to have a day in court or from presenting evidence and argument, the party’s own inability or failure to learn of material facts or the law does not constitute extrinsic mistake allowing the judgment to be vacated. (<i>National Auto & Cas. Ins. Co. v. Superior Court</i> (1986) 184 Cal. App. 3d 948, 960.) Additionally, the moving party seeking to set aside must plead and prove a meritorious case entitling the party to a fair adversary hearing, establishing that if the facts were proven, a different result would be obtained. (<i>Kuehn v. Kuehn</i> (2000) 85 Cal. App. 4th 824, 831.) Ms. Hafoka’s 4/30/2026 Ex Parte Application to continue the original court trial date was granted and set out 13 days later. On 5/13/2026, Ms. Hafoka appeared in Court, all the terms of the Stipulation were read on the record by the Court, and Ms. Hafoka agreed to the terms of the Stipulation. More than two months after the Stipulation for Entry of Judgment, after the Plaintiff filed a declaration of noncompliance with the Stipulation seeking possession of the property, Ms. Hafoka filed a motion to vacate the Stipulation. The Defendant fails to establish fraud, undue influence, or extrinsic mistake. The Court DENIES the Defendant’s Motion to Reopen and Reconsider Judgment. The Court’s ruling on 7/9/2026 Minute Order remains the order of the Court. The Plaintiff is ordered to provide notice of the Court’s ruling.
8	30-2026-01558581 Far West South Coast, Ltd. vs. Platek	The Court has read and considered the Plaintiff’s Motion to Deem Requests for Admission, Set One, Admitted (ROA 89) and Defendant’s Response (ROA 67). The California Supreme Court held, “Subdivision (k) provides that a propounding party who fails to receive a timely response may move for an order that "matters specified in the requests" are deemed admitted. The nonresponding party can avoid the deemed admitted order by serving a verified response before the hearing on the motion. (Ibid.) The failure to do so, however, results in automatic entry of the order. (Ibid.)” (<i>Wilcox v. Birtwhistle</i> (1999) 21 Cal. 4th 973, 978.) Plaintiff filed the Motion to Deem Answers Admitted on July 20, 2026, and Defendant served on the Plaintiff verified responses on July 23, 2026. The Defendant filed responses before the hearing on the motion; therefore, the Court will DENY the Motion to Deem Request for Admissions, Set One, Admitted.

		As previously ordered by this Court on 8/5/2026, the Plaintiff is ordered to arrange a meeting pursuant to Orange County Superior Court Local Rule 317 prior to Monday's (8/10/2026) Pretrial & Jury Trial Hearing at 8:30 AM.
9	30-2026-01583269 La Habra Woods Associates vs. Rodriguez	The Court has read and considered the Defendant's Demurrer to the Complaint for Unlawful Detainer and Motion to Strike (ROA 13), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 21). It is apparent to this Court that the Defendant used a boilerplate motion found online without changing the contents to match the facts in the case. For example, on page 2 of the Defendant's motion, it says "Paragraph 10.a(3) of the main Complaint pleading stated that the alleged 3-day notice was posted at the door on 8/01/2022" but that is not factually accurate, as the Complaint (ROA 2) answers that question with posting occurring on "06/09/2026". Additionally, the Defendant's moving papers say that the Complaint is a violation of "Los Angeles City Ordinance 186606," which is not applicable as the premises are located in the City of La Habra in the County of Orange. The Court DENIES the Motion to Strike. The Court OVERRULES the Demurrer. The Court orders the Defendant to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01583629 Simin Shapouri As Holder Of The Master Lease vs. Joseph	The Court has read and considered the Defendant's Demurrer and the Complaint (ROA 2). The Court takes Judicial Notice of the Proof of Personal Service (ROA 8). Defendant Matteo James Joseph aka Matvey Kirillovich Yozhikov filed this demurrer stating that the other two defendants vacated the premises on June 19, 2026 (Nicholas Temmermand) and June 25, 2026 (Susan Jo Joseph). Mr. Joseph states that Defendant notified the Plaintiff via written communication after service of process on July 11, 2026. The Proof of Service (ROA 8) signed by registered process server David Cunningham (Orange County #1895) shows personal service of Susan Jo Joseph at the premises address (635 Nyes Place, Laguna Beach, CA 92651) on July 19, 2026 at 9:30 AM, which is after the date on which Mr. Joseph alleges that she vacated the premises. The Court OVERRULES the Demurrer. The Defendants are to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
11	30-2026-01580043 Mahgerefteh vs. Hawes	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 30), the Complaint (ROA 1) and the Plaintiff's Opposition (ROA 34).

		The Lease agreement, which is attached to the Complaint, contains a “Rent Cap and Just Cause Addendum” which is signed by both the Plaintiff and Defendant. The Notice of Exemption box is not marked, which means that the subject property is subject to the Tenant Protection Act. The Tenant Protection Act requires service of a notice to perform covenants or quit prior to a notice to quit under Civil Code § 1946.2(c). Additionally, the Plaintiff alleges in the Complaint a severe nuisance but failed to provide notice under California Code of Civil Procedure § 1161(4). A Notice to Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161, a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.) The Court SUSTAINS the Demurrer without leave to amend. The Court dismisses the complaint. The Court Clerk is to provide notice of the Court’s ruling.
12	30-2026-01584179 Park Vista, Ltd. vs. Arredondo	The Court has read and considered the Defendants’ Demurrer to the Complaint (ROA 20), the Complaint (ROA 2) and the Plaintiff’s Opposition (ROA 23). The Court OVERRULES the Demurrer. The Complaint is facially sufficient to pursue a cause of action for an unlawful detainer. The Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court’s ruling.